

HEADNOTE

“1. The Case Management System (CMS) provides for a graduated procedure within the R. 262A workflow for the protection of confidential information, which makes it possible to comprehensively take into account the confidentiality interests of both parties.

2. Before the unredacted version of a document submitted with a request for confidentiality protection is released to the opposing party, the CMS provides the reporting judge within the aforementioned workflow with the opportunity to make orders for the provisional protection of the (allegedly) confidential information.

3. As a rule, such an order will initially limit the circle of persons on the opposing side who are authorized to access the information until a final decision is made on the confidentiality protection request. If the reporting judge exceptionally considers a provisional confidentiality protection order to be unnecessary on the basis of the content of such a request, he must inform the party seeking confidentiality protection of his view before releasing the unredacted version. The opportunity to comment that must be granted at the same time offers the party in question the opportunity to respond to the impending unprotected release of information that it considers confidential and, if necessary, to declare that the documents in question should not be made subject matter of the proceedings or only to a limited extent.

4. In order to enable the court to make a decision with knowledge of the allegedly confidential submission, fully unredacted versions of the document in question must always be submitted together with a request for confidentiality protection pursuant to R. 262A VerfO. All submitted documents are subject to provisional confidentiality protection.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP 2 697 391 B1

Method and product for localised or spatial detection of nucleic acid in a tissue sample

KEYWORDS

Confidentiality protection

Confidentiality request

Trade secrets

Rule 262A request

Rule 262A workflow

Pre-arranged order

Right to be heard

Rule 262A Protection of Confidential Information**SUMMARY**

The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, the Case Management System provides a graduated procedure for handling confidential information that allows courts to balance the confidentiality interests of both parties. Before releasing unredacted documents to the opposing party, the reporting judge has the opportunity to issue provisional protection orders for allegedly confidential information. As a rule, such orders initially restrict who on the opposing side can access the information until a final decision is made, though the reporting judge must notify the requesting party if he considers provisional protection unnecessary and give that party a chance to respond before release. To enable the court to decide the confidentiality request with full knowledge of the submission, parties must always file unredacted versions of disputed documents, which remain provisionally protected from disclosure.